

from the performance or breach of the parties' contract and instead that were made to induce Plaintiff to enter into the contract, violating a legal duty the preceded and was independent of performance under the contract for the sale and shipment of the cherries. Based on *Robinson Helicopter, Sheen, Dhital, and Rattagan*, the economic loss rule does not necessarily bar the negligent misrepresentation claim Plaintiff attempts to allege here. (See *Rattagan, supra*, 17 Cal.5th at 38, 40 ["[F]rom a policy standpoint, there is no logical reason to distinguish among various species of actionable fraud committed while otherwise performing a contract, assuming the tort elements can be established independently of the contractual rights and obligations"].)

This conclusion is also consistent with two of the federal cases cited by TFC. In *Crystal Springs Upland Sch. v. Fieldturf USA, Inc.* (N.D. Cal. 2016) 219 F. Supp. 3d 962, the Court explained that "District courts in this circuit have applied *Robinson Helicopter* on a case-by-case basis to decide whether negligent misrepresentation claims are barred by the economic loss rule," citing among other decisions "*Bret Harte Union*, 2016 U.S. Dist. LEXIS 83295, 2016 WL 3519294, at **3-6 (collecting cases and holding that claims for negligent misrepresentation that allege contract formation was tortiously induced are per se permissible)." (*Id.* at 969 [emphasis added].) (See *Bret Harte Union High Sch. Dist. v. Fieldturf, USA, Inc.* (E.D. Cal. Jun 27, 2016), Case No. 16-cv-00371-DAD-SMS, 2016 U.S. Dist. LEXIS 83295, *1 at *16 ["Here, plaintiff's breach of contract claim alleges defendants failed to make good on their warranty when they failed to replace the field, whereas the negligent misrepresentation claim essentially alleges that plaintiff would not have entered into this contract absent alleged defendants' misrepresentations. This negligent misrepresentation claim sounds more in deceit/fraud than it does in negligence. As such, the court is not persuaded that plaintiff's negligent misrepresentation must be dismissed as it is pled." (Emphasis added.)].) The Court is not persuaded by the other federal trial level decisions cited by defendant on the economic loss rule to the extent they reach a different result from the decision in *Bret Hart*, which the Court finds to be more consistent with the governing law in the California decisions cited above.

The general demurrer to the eighth cause of action is **sustained, with leave to amend**.

13. 9:00 AM CASE NUMBER: C25-02393
CASE NAME: TOM SPIES VS. IRA HARRIS
HEARING IN RE: APPLICATION FOR PRELIMINARY INJUNCTION
FILED BY: SPIES, TOM
TENTATIVE RULING:

Plaintiffs Tom and Brenda Spies' motion for a preliminary injunction is **continued** to February 11, 2026.

The parties may file and serve a supplemental brief no later than February 2, 2026. The briefs shall be no more than 10 pages double spaced. Where possible the parties should provide citations to relevant statutes or case law.

The Court requests supplemental briefing on the following issues:

- 1) If Plaintiffs are attacking the renewed judgment, are they required to do so in the underlying case (N07-1969)? If they are allowed to attack the renewed judgment in this case, what is the procedural method for doing so?
- 2) Address how the declaratory relief claim would allow for a preliminary injunction here? Is the declaratory relief claim an attack on the renewed judgment? If so, is it a proper method for challenging a judgment or a renewed judgment?
- 3) Code of Civil Procedure section 683.170 provides 60 days to challenge a renewed judgment, but states it is not the exclusive remedy. Assuming that the Court finds that Plaintiffs met the requirements of Civil Code section 1504 in 2008, what is the procedural method (or methods) for challenging the addition of interest on the judgment? Is there a deadline to follow the procedure?
- 4) If the Court finds that the Moore & Baker invoice is not covered by the deed of trust, is it correct that the judgment covered the entire debt included in the deed of trust? In that situation, does Defendant have the option of nonjudicial foreclosure using the deed of trust or is he limited to pursuing the judgment using judgment enforcement procedures?
- 5) Has there been any indication that Defendant intends to foreclose on the Danville property? If so, are there any dates scheduled for foreclosure?

14. 9:00 AM CASE NUMBER: C25-02434
CASE NAME: MANISHA RANE VS. HYUNDAI MOTOR AMERICA,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA,
TENTATIVE RULING:

Defendant, Hyundai Motor America Corporation (“defendant” or “Hyundai”), moves the Court under both the California Arbitration Act (“CAA”) and the Federal Arbitration Act (“FAA”) to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Hyundai has failed to establish that an enforceable arbitration agreement exists between itself and plaintiffs based on the Owner’s Handbook, and because the Connected Services Agreement is permeated by unconscionability, the motion is **denied**, as discussed below.

I. Background

Plaintiffs Manisha R. Rane and Anand B. Shah allege that on December 11, 2024 they purchased a 2024 Hyundai Sonata EV. (Shah Declaration, ¶13; Rane Declaration, ¶13; Complaint, ¶18.) Plaintiffs assert that the vehicle was delivered with serious defects including, but not limited to emission and engine system defects. (Complaint, ¶10.) Plaintiffs presented the vehicle for repairs on multiple occasions, but Hyundai was unable to conform the vehicle to the “applicable express warranty” after a reasonable number of repair attempts. (Complaint, ¶¶11-12, 26.) Plaintiffs allege the vehicle was not fit for its ordinary purpose because it was equipped with one or more defective